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A podcaster gave Newsom a gun. Are California laws keeping him from taking it home?

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Keeping up with your California representatives felt impossible before. Now you can watch them like a hawk: Sign up for My Legislator, your weekly, personalized report that tracks what your state representatives say and do.

Gov. Gavin Newsom has signed some of the country's toughest gun-control laws, but he had nothing but nice things to say to a conservative podcaster who gave him a new handgun as a gift last year.

"Brother, this is fabulous," Newsom told the host, Shawn Ryan, last summer. "The last thing people would expect is that I respect this gift. ... I'm not anti-gun at all," Newsom said.

Well, as it turns out, Newsom has yet to take possession of his firearm – the first registered under his name – possibly because of the stringent California gun-control regulations he's supported his entire political career. Those rules make obtaining a gun more difficult in California than in other states, including those whose voters Newsom would hope to court in an anticipated presidential campaign.

On Monday, Newsom filed his mandatory state ethics paperwork, which requires him to disclose his sources of income, sponsored travel and the gifts he received last year.

Newsom listed a pistol from the SIG Sauer gun company among the wine, swag bags, San Francisco 49er and NBA All Star Game tickets as well as $21,585 in sponsored travel to Brazil for a climate-change summit.

In the comments below the gun disclosure, it reads, "Governor Newsom reimbursed SIG Sauer for the amount exceeding $600; currently held by (a) licensed firearm dealer, and not in the Governor's possession."

Under the state's ethics rules, a politician in California may only accept a gift worth less than $630, so Newsom had to pay the balance on the weapon's total value. The gun retails for around $700.

Newsom's office didn't reply to CalMatters when asked whether the firearms dealer holding his gift is in California or another state such as Tennessee, where Ryan's podcast is based. Last year, CalMatters asked Newsom's press team how he planned to get the weapon home. They didn't respond to multiple inquiries.

It's entirely possible Newsom just hasn't prioritized taking the time to get his new gun, but Second Amendment advocates say it's just as likely the very barriers to California gun ownership Newsom has supported are making the process difficult for him.

"You would think that maybe he would take a look at that and think 'Maybe I should do some things differently here, because it's causing (me) difficulty,' " said Adam Wilson, the director of legislative affairs at Gun Owners of California. "But he doesn't understand that, because he doesn't care about what regular gun owners are going through."

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In order to take the gun home, Newsom would first have to jump through a number of regulatory hoops that would take time out of his busy schedule governing the state as well as traveling around the country and the globe, boosting his profile for a potential presidential run.

First, he'd have to arrange to have the gun shipped to a licensed firearms dealer in California. Then Newsom would have to pass a background check, provide his thumb prints, take a handgun safety test, sign affidavits, provide a driver's license and documents that contain his name and address, such as a current utility bill. Newsom would also have to pay around $300 in fees and taxes on the $700 gun.

He'd have to do everything himself, as gun owners need to appear in person to do the paperwork. He'd then need to make a return trip after fulfilling California's 10-day waiting period to sign for and pick up his new firearm.

Newsom's record on gun control

Newsom has long made gun-control part of his political brand.

As lieutenant governor, he championed a successful ballot initiative for mandatory background checks when buying ammunition, the first in the nation. That same initiative also banned anyone from owning "high-capacity" ammunition magazines that can hold more than 10 rounds.

Second Amendment groups have challenged California's background check system and the magazine ban in federal court, though the rules remain in effect pending appeals.

Since being sworn in in 2019, Newsom signed several other gun control laws, including a 2023 bill adding an 11% excise tax on guns and ammo. Those too face court challenges.

Newsom also proposed adding a 28th amendment to the U.S. Constitution to place new age limits, background check requirements and mandatory waiting periods for gun purchasers. His proposed amendment would also ban the civilian ownership of so-called assault weapons. No other state has signed off on Newsom's proposal.

Last year, a few months after getting the SIG Sauer from Ryan, he signed four new gun-control laws including the first-in-the nation ban on new Glock handguns and their various off-brand imitators. The new ban does not apply to Ryan's gift.

Learn more about legislators mentioned in this story.

Jesse Gabriel

Democrat, State Assembly, District 46 (Encino)

The new law targets Glocks because criminals can modify certain models to fire in fully automatic mode with what's known as a "switch" made on a 3D printer. It is illegal to have an automatic weapon without a special federal permit.

"We're incredibly grateful to the governor for his leadership and signing the bill," its author, Jesse Gabriel, a Democrat representing the Encino area, told CalMatters after Newsom signed it. "And I think it just underscores what a champion he's been on these issues."

Another bill Newsom signed last year limits the number of guns a Californian can buy in a month to three. He signed it a few months after a three-judge panel of the 9th Circuit Court of Appeals found unconstitutional a previous California law that Newsom signed in 2019 that limited handgun sales to one weapon a month.

"We are not aware of any circumstance where government may temporarily meter the exercise of constitutional

rights in this manner," the judges wrote in their ruling. "We doubt anyone would think government could limit citizens' free-speech right to one protest a month, their free-exercise right to one worship service per month, or their right to be free from unreasonable searches and seizures to apply only to one search or arrest per month."

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